

able, then in trust for the infant's personal representatives, as part of the infant's personal estate; but the accumulations, or any part thereof, may at any time be applied as if the same were income arising in the then current year.

(6). Where the infant's estate or interest is in an undivided share of land, the powers of this section relative to the land may be exercised jointly with persons entitled to possession of, or having power to act in relation to, the other undivided share or shares.]

17. **Trustees are authorised to oppose a bill in Parliament prejudicial to cestuis que trust.**—Conservators of public works and similar *quasi trustees* are authorised to apply the funds under their control in *opposing* a bill in Parliament, the effect of which if passed would be injurious to the interests confided to them. "Every trustee," said Lord Cottenham, "is entitled to be allowed the reasonable and proper expenses incurred in protecting the property committed to his care. But if they have a right to protect the property from immediate and direct injury, they must have the same right where the injury threatened is indirect, but probable" (a).

18. **Applications to Parliament.**—On the other hand, *quasi* trustees, such as those before referred to, are not entitled to apply the funds of an existing undertaking in or towards the expense of obtaining *other or larger* Parliamentary powers (b).

19. **As to insurance.**—A *trustee* would, it is conceived, under special circumstances, and in due course of management, be justified in *insuring* the property (c); but where there is a tenant for life, he could not be advised to do so out of the income without the tenant for life's consent.

(a) *Bright v. North*, 2 Ph. 220; *Queen v. Norfolk Commissioners of Sewers*, 15 Q. B. 549; *Attorney-General v. Andrews*, 2 Mac. & G. 225; *Attorney-General v. Eastlake*, 11 Hare, 205; [*Attorney-General v. Mayor of Brecon*, 10 Ch. D. 204; *Regina v. White*, 14 Q. B. D. 358, reversing S. C. 11 Q. B. D. 309.]

2 Mac. & G. 225; *Vance v. East Lancashire Railway Company*, 3 K. & J. 50; *Attorney-General v. Guardians of the Poor of Southampton*, 17 Sim. 6; *Attorney-General v. Corporation of Norwich*, 16 Sim. 225; *Stevens v. South Devon Railway Company*, 13 Beav. 48.

(c) *Ex parte Andrews*, 2 Rose, 412; and see *Fry v. Fry*, 27 Beav. 146.

(b) *Attorney-General v. Andrews*,